

it is exemption of ecclesiastical persons and things from secular or civil liabilities, burdens, or duties, the exemption of the clergy from lay jurisdiction, church property from secular taxation, and freedom of sanctuary from invasion; medically it means insusceptible to poison, the contagion of a specific disease, or the like. (A New English Dictionary on Historical Principles; founded mainly on the materials collected by the Philological Society, edited by James A. H. Murray, with the assistance of many scholars and men of science, Volume V., H to K, 1901, p. 70.) But the general meaning of the word is freedom or exemption from any natural

"The Parlement Belge covers this case; and that though it is true that in many of the earlier cases the claim put forward with regard to a particular ship was that she was on public service and employed in the public service, and no doubt the statement so made was applicable to the particular case, but in this case the court is bound by the Parlement Belge and the appeal must be dismissed."

Warrington, L. J., said that he was of the same opinion, and he also thought the case was clearly covered by the Parlement Belge and had therefore no alternative but to dismiss the appeal. Whatever may be the actual use to which the ship is put, he thought the evidence was quite sufficient to show that she was the property of the state, and was destined to public use, and therefore the case seemed to come exactly within the principle of the judgment in the Parlement Belge."

Scrutton, L.J., said:

"There are no limits to the immunity which the Sovereign enjoys, and it has been held in the Parlement Belge that trading on the part of a Sovereign does not subject him to any liability to the jurisdiction; and we are concluded in this court by the Parlement Belge. I think it is clear that we must in this court support the decision of Hill, J., and dismiss the appeal."

M. Ripert of France is likely to take what Mr. Hill says as a correct expression of English law. In the Report of the French Association of Maritime Law presented by him (Report of the London Conference, p. 84), he says:

or usual liability, or from anything evil or injurious; or freedom from ordinary restraints, undue freedom, licence.

OPINIONS OF ENGLISH LAWYERS.

For the meaning of immunity in law I have looked diligently, as far as my time and the resources in hand permit, but could not find a satisfactory one. I do not know whether there are monographs treating the subject. I have searched about 120 books old and new, especially new, written in relation to English constitution, crown, king, government, privilege, &c., and also books on criminal law, criminal

“As to England, the report of Sir Maurice Hill states that there could be no proceedings before the English judicature either by way of action in personam or by way of action in rem in respect of any supplies, or of any salvage services rendered to the ships of a foreign state or in respect of damages caused by such ships, even when they are managed commercially.”

To us what Sir R. Phillimore has said in the *Parlement Belge* when that case came before him is reasonable, but it seems not to be in accordance with English law and was overruled by the court above. He said:

“It seems to me clear that by the expression ‘public ship of the government,’ he (party) meant a ship of war, and not any vessel employed by the Government. But even if the term could be treated as more comprehensive, and as including public ships such as I referred to, sent by the Government on exploring expeditions, it would not include vessels engaged in commerce, and whose owner is, to use the expression of Bynkershoek (*De Leg. Mercatore*, ed. 1730, vol. 6, p. 500), ‘*strenue mercatorem agens*.’ Upon the whole, I am of opinion that neither upon principle, precedent, nor analogy of general international law, should I be warranted in considering the *Parlement Belge* as belonging to the category of public vessels which are exempt from process of law and all private claims.” (Asp. 4, p. 42.)

proceedings, proceedings or pleadings in general in order to find good explanations of the word all in vain. In such famous work as Joseph Chitty's "A Treatise on the Law of the Prerogatives of the Crown" (1820), which solely treats of the prerogative of the Crown, we find neither definition nor explanation of immunity. Even in such chapters as "The King's Attributes or Political Power," "His Prerogative in general," and "Boundaries and restraints" (pp. 4-9), there is no explanation of immunity. Chapter XIV. is entitled "Of the Privileges and Incapacities of the King in several matters," and there the author devotes many pages to it (pp. 374-382), and explains much about privileges, prerogatives, and dignities of the sovereign, but not of immunity.

Although we find in his statement the word immunity, for instance, when he states, "there are also various royal immunities of minor importance, which require consideration" (p. 374), we cannot find the explanation of immunity itself.

In "The Dictionary of English Law" by Sweet there is no word immunity, neither in the voluminous "Judicial Dictionary" by Stroud. Neither "The Law of England" by the Earl of Halsbury nor "Encyclopædia of the Law of England" defines immunity. The seventeenth edition of Stephen's "Laws of England" is thoroughly revised and modernised, but in any of its four volumes is neither chapter nor section nor subsection entitled immunity, and not a single word "immunity" among the index of numerous words.

True, we find in the index of Volume II., the phrase "immunity of ambassadors" (pp. 601-604), but there is no explanation of the word. The author explains therein the rights, powers, and privileges of the ambassador and talks also about his privileges in respect to criminal or civil suit; but does not explain the meaning of immunity. Wharton's "Law Lexicon" is no use for our present purposes.*

* (1) A Dictionary of English Law containing definitions of the technical terms in modern use and a concise statement of the rules of law affecting the principal subjects with historical and etymological notes, by Charles Sweet (1882, p. 414. The new edition of 1923 does not improve in this point). Thus: Illusory, Immorality, Impanel, Impeachment, &c.; (2) The Judicial Dictionary of words and phrases judicially interpreted, to which has been added statutory definitions, by F. Stroud (second edition, vol. II., 1903, p. 913), thus: Immemorial, immoral, immovables, impanel, impartiality, &c.; (3) The Laws of England, being a complete statement of the whole law of England by the right honourable the Earl of Halsbury and other lawyers (volume XVI., 1911, p. 604), thus: Husband and Wife, Hypothecation, Immigration, Immoral Contracts, Impeachment, Impeachment of Waste; (4) Encyclopædia of the Laws of England, with forms and precedents by the most eminent legal authorities (second edition, revised and enlarged, volume VII., 1907, p. 36), thus: Immorality, Immovables, Imparcamentum, Imparl, Imparlance, Impeachment; (5) Wharton's Law Lexicon, forming an epitome of the law of England as existing in statute law and decided cases, and containing full explanations of technical terms and phrases, both ancient, modern, and commercial, with selected titles from the Civil, Scots, and Indian law (eleventh edition, by W. H. Aggs, 1911, p. 419. The new edition of 1916 does not improve in this point), thus: Immoral Contracts, Immovable, Immunity, Impalare, Impanel, Impargamentum, Impeachment; (6) Mr. Serjeant Stephen's New Commentaries on the Laws of England, partly founded on Blackstone, by His Honour Judge Stephen (sixteenth edition, under the general editorship of Edward Jenks, Esq., thoroughly revised and modernised, and brought down to the present time, in four volumes, 1914, pp. 601-604. In this point, new seven-